

PETITION - ASK A NORTH DAKOTA COURT TO SEAL A FELONY CONVICTION

IN THE COURT

(Clerk of Court of the existing criminal case - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION TO SEAL A FELONY CONVICTION (N.D.C.C. Sec. 12-60.1-02(1)(B))

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under N.D.C.C. Sec. 12-60.1-02(1)(b); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A person who pled guilty to or was found guilty of a felony may petition to seal the record if they have not been convicted of a new crime for at least five years before filing. The chapter bars a felony offence involving violence or intimidation during the period in which the offender is ineligible to possess a firearm under N.D.C.C. Sec. 62.1-02-01(1)(a), which is ten years from the latest of conviction, release from incarceration, release from parole or release from probation, for offences in chapters 12.1-16 through 12.1-25.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - seal full legal name] What is your full legal name?

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.....

[C2 - seal all other names] What other names have you ever used, including maiden names and aliases?

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[C3 - seal address history] Where have you lived from the date of the offence until now?

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.....

[C4 - seal reasons] In your own words, why should the court seal this record?

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.....

[C5 - seal court type] Was the case in district court or municipal court?

.....
.....

[C6 - seal county] Which North Dakota county or municipality?

.....
.....

[C7 - seal case number] What is the case number?

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.....

[C8 - seal offence] What were you convicted of?

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.....

[C9 - seal criminal history nd] What other North Dakota charges or convictions do you have, past or pending?

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.....

[C10 - seal criminal history elsewhere] What charges or convictions do you have in other states, federally, or in another country?

(Asked where the participant reports any out-of-state, federal or foreign record.)

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.....

[C11 - seal prior relief requests] Have you ever asked any court or authority to pardon, expunge, seal or return records for any case - whether or not it was granted?

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.....

[C12 - seal new convictions] Have you been convicted of any new crime since the offence, and if so when?

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[C13 - seal supervision complete] Have you finished all imprisonment and all probation on this case?

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[C14 - seal restitution paid] Has all restitution been paid in full?

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[C15 - seal registration ordered] Were you ever ordered to register as an offender under North Dakota law?

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[C16 - seal prosecutor office] Which office prosecuted the case - a city attorney or the county State's Attorney?

.....

.....

[C17 - seal offence chapter] Which North Dakota Century Code chapter is the offence in? Chapters 12.1-16 through 12.1-25 cover violence and intimidation offences and carry an extra bar.

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[C18 - seal conviction date] On what date were you convicted?

(Required where a violence or intimidation felony is reported, to compute the firearm-disability period.)

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.....

[C19 - seal release dates] On what dates were you released from incarceration, from parole and from probation, whichever apply?

(Required where a violence or intimidation felony is reported. The ten years run from the latest of them.)

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D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under N.D.C.C. Sec. 12-60.1-02(1)(b); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:ND:nd-seal-felony-conviction

PROPOSED ORDER - ASK A NORTH DAKOTA COURT TO SEAL A FELONY CONVICTION

IN THE COURT
(Clerk of Court of the existing criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under N.D.C.C. Sec. 12-60.1-02(1)(b); N.D.C.C. Sec. 12-60.1-03; N.D.C.C. Sec. 12-60.1-04; N.D.C.C. Sec. 12-60.1-01(7); N.D.C.C. Sec. 12-60.1-02(2); N.D.R.Ct. 3.4; N.D.R.Crim.P. 49. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....
(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-only:ND:nd-seal-felony-conviction

PROOF OF SERVICE - ASK A NORTH DAKOTA COURT TO SEAL A FELONY CONVICTION

IN THE COURT
(Clerk of Court of the existing criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROOF OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below, and not before, I delivered a copy of the petition and of the proposed order filed with it to the person or office named here:

Name and office of the person or office to whom the papers were delivered:

.....

Address at which the papers were delivered:

.....

How the papers were delivered - by hand, by mail, or by the electronic method the court accepts:

.....

DATE SIGNATURE OF PETITIONER

(DO NOT SIGN OR DATE THIS PAGE UNTIL THE PAPERS HAVE ACTUALLY BEEN DELIVERED. A certificate signed before delivery states something that has not happened.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:ND:nd-seal-felony-conviction

FILING INSTRUCTIONS - ASK A NORTH DAKOTA COURT TO SEAL A FELONY CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition to Seal a Felony Conviction (N.D.C.C. Sec. 12-60.1-02(1)(b)).

A person who pled guilty to or was found guilty of a felony may petition to seal the record if they have not been convicted of a new crime for at least five years before filing. The chapter bars a felony offence involving violence or intimidation during the period in which the offender is ineligible to possess a firearm under N.D.C.C. Sec. 62.1-02-01(1)(a), which is ten years from the latest of conviction, release from incarceration, release from parole or release from probation, for offences in chapters 12.1-16 through 12.1-25.

WHERE IT GOES

Clerk of Court of the existing criminal case

Filed in the criminal case itself. The respondent is the prosecuting attorney: the office of the prosecuting official for the municipality in a municipal case, or the office of the State's Attorney for the county in a district court case. The petitioner serves the prosecuting attorney under N.D.C.C. Sec. 12-60.1-03(4), which routes through N.D.R.Crim.P. 49 to N.D.R.Civ.P. 5(b).

Venue: The existing criminal case for the offence, under N.D.C.C. Sec. 12-60.1-03(1). There is no separate civil action. District court or municipal court, whichever holds the case.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Not established. The statewide court fee schedule effective 1 July 2025 carries no line item for a Chapter 12-60.1 petition or for a motion within an existing criminal case, and the official research guide directs the participant to ask the clerk what the fee is, if any. Fee waiver as recorded: Not established for this petition. N.D.C.C. Sec. 12-60.1-04(6) expressly makes a municipal-to-district-court appeal fee-free, which implies a fee may attach at first instance.

WHO MUST BE SERVED

Service as recorded: On the prosecuting attorney, under N.D.C.C. Sec. 12-60.1-03(4) through N.D.R.Crim.P. 49 and N.D.R.Civ.P. 5(b). The participant serves and files proof. Notice as recorded: The prosecutor must, so far as practicable, notify and seek input from law enforcement, witnesses, victims and correctional authorities under N.D.C.C. Sec. 12-60.1-04(4).

WHAT THE RECORD SAYS YOU MUST KNOW

- Sealing under Chapter 12-60.1 does not reach BCI criminal history record information or the criminal justice data system, and it does not reach federal, tribal, military, out-of-state or private-database records. The order also states that the petitioner remains subject to N.D.C.C. Sec. 12.1-33-02.1 and that the information is released where an entity has a statutory obligation to run a background check.
- The proposed order is filed with the petition, not after it. N.D.C.C. Sec. 12-60.1-03(3) makes it mandatory and a petition without one is incomplete.
- Service on the prosecuting attorney precedes filing, and proof of service is filed with the petition.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any offence for which registration was ordered under N.D.C.C. Sec. 12.1-32-15, which the chapter excludes.
- Any impaired-driving offence, which the official guides route to the separate Sec. 39-08-01.6 seal.
- Unpaid restitution, or imprisonment or probation not yet complete.
- A new conviction inside the look-back period.
- Pending charges anywhere.
- Any objection from the prosecutor, a victim, a witness or a correctional authority.
- Out-of-state, federal, tribal or military records, which a North Dakota court cannot reach.
- Any case where the reformation or good-cause showing is the real contest.
- Any participant with immigration exposure.
- A participant whose actual goal is firearm-rights restoration.
- Every felony petition, which the controlling review makes an attorney handoff.
- Any question whether the offence involved violence or intimidation.
- Any firearm-disability computation.
- A prosecutor objection, a victim objection, or any contest over reformation ends automated assistance.
- No hearing may be held earlier than 45 days after filing unless the prosecutor stipulates. The petitioner attends and carries a clear-and-convincing burden. Attendance at that hearing is not a generation blocker; losing it is where self-help ends.

THE PAGES IN THIS SET

- nd-seal-felony-conviction-primary-filing-1: the composed petition, on this route's own statutory ground (Ask a North Dakota court to seal a felony conviction)
- nd-seal-felony-conviction-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Ask a North Dakota court to seal a felony conviction)
- nd-seal-felony-conviction-proof-of-service-3: the page on which the participant records that the papers were actually delivered, signed only after delivery (Ask a North Dakota court to seal a felony conviction)

Route: obligation:track-only:ND:nd-seal-felony-conviction